

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Karina Herrera	Team: Squad #02	CCRB Case #: 201708006	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 09/25/2017 5:10 PM	Location of Incident: Transit District 2 Stationhouse (Canal Street Subway Station)	18 Mo. SOL 3/25/2019	Precinct: 01		
Date/Time CV Reported Thu, 09/28/2017 12:36 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 09/28/2017 12:36 PM		
Complainant/Victim	Type	Home Address			
Witness(es)		Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Farid Aliyev	00140	934381	TB DT02		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Cely Decolongon	28092	939816	TB DT02		
2. POM Terrance Howell	28883	911278	TB DT02		
Officer(s)	Allegation	Investigator Recommendation			
A . SGT Farid Aliyev	Discourtesy: Sergeant Farid Aliyev spoke discourteously to § 87(2)(b)	A . Substantiated			
B . SGT Farid Aliyev	Abuse: Sergeant Farid Aliyev threatened to seize § 87(2)(b)'s property.	B . Substantiated			

Case Summary

On September 28, 2017, § 87(2)(b) filed the following complaint in-person at the CCRB.

At approximately 5:10 p.m. on September 25, 2017, § 87(2)(b) was arrested for failing to pay for public transportation and was taken to the Transit District 2 stationhouse by Police Officer Cely Decolongon of Transit District 2 (Board Review 01). § 87(2)(b) was placed in a cell and Police Officer Decolongon began vouchering his property, including his cellphone. Police Officer Decolongon asked § 87(2)(b) to unlock his cellphone so the IMEI number could be obtained. § 87(2)(b) refused to do so. Police Officer Decolongon walked out of the cell area. Police Officer Decolongon returned immediately to the cell area with Sergeant Farid Aliyev of Transit District 2. Sergeant Aliyev allegedly told § 87(2)(b) “Listen, give up the fucking code to the phone or you’ll never see the fucking phone again” (**Allegation A: Discourtesy, Substantiated**) (**Allegation B: Abuse of Authority, Substantiated**). § 87(2)(b) refused again. Sergeant Aliyev told Police Officer Decolongon to voucher § 87(2)(b)’s cellphone as investigatory evidence and then left the cell area.

At some point, Police Officer Decolongon told § 87(2)(b) that he had to be fingerprinted, but § 87(2)(b) refused to get fingerprinted. Police Officer Decolongon left the cell area and returned again with Sergeant Aliyev. Sergeant Aliyev allegedly told § 87(2)(b) “Listen, you give up the fingerprints or you’re going to be sitting here for three days straight.” However, § 87(2)(b) continued refusing to be fingerprinted. Shortly after, Police Officer Terrance Howell of Transit District 2 approached § 87(2)(b) and was able to convince § 87(2)(b) to be fingerprinted. Once § 87(2)(b) was released from custody, he was ultimately able to get his cellphone back.

On October 3, 2017, a request was sent to the Counterterrorism Lower Manhattan Security Initiative (CT LMSI) for two hours of video footage from any and all cameras that recorded the cell area of Transit District 2. On October 17, 2017, CT LMSI’s response to the request was that the time needed to be narrowed due to the fact that there were three cameras near the holding cells. However, the undersigned investigator did not receive CT LMSI’s response from IAB until October 25, 2017, which was also the last day the footage was being held. After many calls between the undersigned investigator, IAB, and CT LMSI, CT LMSI decided that the request for the video footage had to be narrowed to one hour and that the time had to be divided between the three cameras; therefore, CT LMSI provided twenty minutes of video from each camera. Camera #1 recorded cell #1 which was § 87(2)(b)’s cell (Board Review 02). Camera #2 recorded cell #2 and partly showed cell #1 (Board Review 03). Camera #3 recorded cell #3 and did not show cell #1 (Board Review 04). Due to the restrictions in time, the video footage provided by CT LMSI did not show the majority of § 87(2)(b)’s stay in the cells or much of his interactions with officers.

Findings and Recommendations

Allegation A -Discourtesy: Sergeant Farid Aliyev spoke discourteously to § 87(2)(b)

**Allegation B – Abuse of Authority: Sergeant Farid Aliyev threatened to seize § 87(2)(b)
§ 87(2)(b)'s property.**

This complaint was filed in person at the CCRB on September 28, 2017, and § 87(2)(b) was interviewed at the CCRB on the same date. Police Officer Farid Aliyev was interviewed on October 27, 2017. Police Officer Cely Decolongon was interviewed on October 31, 2017. Police Officer Howell was interviewed on November 21, 2017.

§ 87(2)(g) It is undisputed that § 87(2)(b) was arrested by Police Officer Decolongon on September 25, 2017 and was taken to the Transit District 2 stationhouse. Upon arriving to the stationhouse, § 87(2)(b) was taken to the front desk where he spoke to Sergeant Aliyev, who was the desk officer at the time. After conversing with Sergeant Aliyev, Police Officer Decolongon placed § 87(2)(b) in a cell and began vouchering his property. Police Officer Decolongon told § 87(2)(b) that he had to be fingerprinted, but § 87(2)(b) refused to get fingerprinted. Police Officer Howell approached § 87(2)(b) and was able to convince him to get fingerprinted. Police Officer Decolongon also asked § 87(2)(b) to unlock his cellphone so that the IMEI number could be obtained and the cellphone could be vouchered. § 87(2)(b) refused to unlock his cellphone to provide the IMEI number. Police Officer Decolongon eventually vouchered § 87(2)(b)'s cellphone as investigatory evidence (Board Review 05).

§ 87(2)(g)

§ 87(2)(b) stated that when he arrived to the Transit District 2 stationhouse, he was taken to the front desk where Sergeant Aliyev and Police Officer Howell were sitting. Sergeant Aliyev told § 87(2)(b) “This won’t last for long. You’ll be out by today.” Police Officer Decolongon took § 87(2)(b) to a holding cell. While Police Officer Decolongon was vouchering § 87(2)(b)'s property, she asked § 87(2)(b) to unlock his cellphone so she could obtain the IMEI number. § 87(2)(b) refused to unlock his cellphone for Police Officer Decolongon. Police Officer Decolongon exited the cell area and returned shortly after with Sergeant Aliyev. Sergeant Aliyev allegedly told § 87(2)(b) “Listen, give up the fucking code to the phone or you’ll never see the fucking phone again.” § 87(2)(b) continued refusing to unlock his cellphone for the IMEI number. Sergeant Aliyev told Police Officer Decolongon to voucher § 87(2)(b)'s cellphone as “investigatory” and left the cell area.

§ 87(2)(b) stated that Police Officer Decolongon told him that he had to be fingerprinted. § 87(2)(b) refused to be fingerprinted. Police Officer Decolongon left the cell area and returned again with Sergeant Aliyev. Sergeant Aliyev allegedly told § 87(2)(b) “Listen, you give up the fingerprints or you’re going to be sitting here for three days straight.” § 87(2)(b) continued refusing to be fingerprinted. Police Officer Decolongon and Sergeant Aliyev left the cell area. Shortly after, Police Officer Howell approached § 87(2)(b) and spoke to him. Police Officer

Howell convinced § 87(2)(b) to get fingerprinted. § 87(2)(b) apologized to the officers and allowed himself to get fingerprinted.

Sergeant Aliyev stated that he only spoke to § 87(2)(b) when he arrived to the stationhouse and was brought to the desk. § 87(2)(b) asked Sergeant Aliyev why he was not receiving a Desk Appearance Ticket (DAT). Sergeant Aliyev told § 87(2)(b) that he could not receive a DAT § 87(2)(b). § 87(2)(b) became “agitated” and began cursing. Police Officer Decolongon took § 87(2)(b) to a holding cell and that was the last time Sergeant Aliyev saw § 87(2)(b). Sergeant Aliyev denied having additional interactions with § 87(2)(b) and he stated that he did not go to the holding cells at any point.

When asked what information officers usually obtain in order to voucher electronics such as cellphones, Sergeant Aliyev stated that officers may ask prisoners for their IMEI numbers or the codes to their cellphones; however, Sergeant Aliyev did not recall if § 87(2)(b) provided the code to his cellphone. Sergeant Aliyev did not speak to § 87(2)(b) in regards to his IMEI number or the code to his cellphone, but he believed that § 87(2)(b)'s property was released to him approximately two days after his arrest. Sergeant Aliyev was asked if he was ever made aware that § 87(2)(b) refused to provide his IMEI number and he said he did not recall. Sergeant Aliyev stated that he did not see § 87(2)(b) before he was transported to central booking.

Police Officer Decolongon stated that after she placed § 87(2)(b) in a cell, she began processing his arrest. § 87(2)(b) needed to be fingerprinted, but he was refusing to do so because he did not want to go to central booking. Police Officer Decolongon left the cell area and informed Sergeant Aliyev that § 87(2)(b) was refusing to get fingerprinted. Sergeant Aliyev went to the cell area to speak to § 87(2)(b) and Police Officer Decolongon remained at the front desk. Police Officer Decolongon stated that § 87(2)(b)'s property had not been vouchered at this point because fingerprints are usually obtained before property vouchering. Sergeant Aliyev spoke to § 87(2)(b) for approximately two to three minutes. Police Officer Decolongon did not hear what Sergeant Aliyev told § 87(2)(b). Sergeant Aliyev returned and told Police Officer Decolongon that § 87(2)(b) was still refusing to get fingerprinted. Police Officer Howell, who was working at the front desk, volunteered to speak to § 87(2)(b) in an attempt to convince him to get fingerprinted. Police Officer Howell spoke to § 87(2)(b) for approximately two to three minutes. Police Officer Decolongon was not present for the conversation between § 87(2)(b) and Police Officer Howell. Police Officer Howell returned and told Police Officer Decolongon that he was able to convince § 87(2)(b) to get fingerprinted. Police Officer Decolongon returned to the cell area and fingerprinted § 87(2)(b).

Approximately thirty minutes later, Police Officer Decolongon asked § 87(2)(b) to retrieve the IMEI number from his cellphone so she could voucher it. § 87(2)(b) refused to provide Police Officer Decolongon with his cellphone's IMEI number. Police Officer Decolongon informed § 87(2)(b) that his cellphone would be vouchered as “investigatory.” Police Officer Decolongon then informed Sergeant Aliyev about her decision to voucher § 87(2)(b)'s cellphone as investigatory evidence and he approved. Police Officer Decolongon proceeded to voucher § 87(2)(b)'s cellphone as investigatory evidence and she vouchered the rest of § 87(2)(b)'s property for safekeeping. Police Officer Decolongon stated that no other officer spoke to § 87(2)(b).

§ 87(2)(b) about his cellphone or his IMEI number. Police Officer Decolongon was not aware of Sergeant Aliyev asking § 87(2)(b) to unlock his cellphone. Police Officer Decolongon did not hear Sergeant Aliyev speaking discourteously to § 87(2)(b) or threatening to seize § 87(2)(b)'s property.

In his interview, Police Officer Howell stated that Police Officer Decolongon approached the desk and said that § 87(2)(b) did not want to get fingerprinted. Police Officer Howell did not recall who else was at the desk, but he believed Sergeant Aliyev was there at some point. Police Officer Howell went to the holding cells and spoke to § 87(2)(b). Police Officer Howell did not recall what he said to § 87(2)(b). § 87(2)(b) told Police Officer Howell that he would allow himself to get fingerprinted and Police Officer Howell informed Police Officer Decolongon about § 87(2)(b)'s cooperation. Police Officer Decolongon did not mention anything to Police Officer Howell about § 87(2)(b)'s property being vouchered. Police Officer Howell did not see any other officers speaking to § 87(2)(b) and he was not aware of any conversations that took place between § 87(2)(b) and other officers. Police Officer Howell did not see § 87(2)(b) and Sergeant Aliyev interacting. Police Officer Howell did not see Sergeant Aliyev enter the cell area. When asked if Sergeant Aliyev left the desk at any point, Police Officer Howell said Sergeant Aliyev could have left the desk, but he was not certain.

According to the Prisoner Holding Pen Roster (Board Review 05) and the videos provided by CT LMSI, there were two other prisoners, § 87(2)(b) and § 87(2)(b) inside of their respective cells at the same time § 87(2)(b) was inside of his holding cell. Several phone calls and letters were sent to these potential witnesses, but neither of them responded to the contact attempts.

As previously discussed, the NYPD only provided video covering a small portion of § 87(2)(b)'s stay at the Transit District 2 stationhouse. The video shows a brief seventeen second portion, embedded below, of § 87(2)(b)'s total interaction with Police Officer Decolongon and none of his interaction with Police Officer Howell nor his alleged interaction with Sergeant Aliyev.



201708006_20180215_1054_DM.mp4

As per Patrol Guide Procedure 203-09, officers must be courteous and respectful when engaging in public contact (Board Review 06). As per Patrol Guide Procedure 218-19, Desk officers will direct officers to seize and invoice property as investigatory evidence in cases where a criminal investigation is required and no arrest has been made (Board Review 07).

§ 87(2)(g)
[Redacted text block]

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first and only CCRB complaint (Board Review 08).
- Sergeant Aliyev has been a member of the NYPD for thirteen years and has been involved in nine CCRB cases with nineteen allegations pleaded against him; amongst these, one allegation was substantiated. In CCRB case #201307368, an allegation of Offensive Language (sexual orientation) was substantiated. Sergeant Aliyev received "Command Discipline – B" as his penalty.
- Amongst the allegations that were pleaded against Sergeant Aliyev in the past, three of them were Discourtesy (word) allegations, which were all unsubstantiated, and eight were Abuse of Authority allegations, three of which were allegations that Sergeant Aliyev made some sort of threat towards civilians, though none of them were threats to seize property.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was presented with and refused mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On February 13, 2018, the New York City Comptroller's Office confirmed that no Notice of Claim had been filed in regards to this incident.

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date